Bud Share

craft growers network · By Whoomph

Terms of Use & Privacy Policy

DRAFT – NOT FOR PUBLICATION

Effective date: [EFFECTIVE DATE]

Placeholders in [SQUARE BRACKETS] must be completed before publication.
Have this draft reviewed by a South African attorney before use.

Bud Share – Terms of Use

DRAFT – for review before publication

Effective date: [EFFECTIVE DATE]
Version: 1.0 (draft)

Bud Share – craft growers network, *By Whoomph*.

Please read these Terms carefully. They are a legally binding agreement between you and the operator of Bud Share. Some clauses limit our liability, place risk on you, or require you to indemnify us. They are **highlighted in bold** in line with section 49 of the Consumer Protection Act, 2008 (where it applies) and the Electronic Communications and Transactions Act, 2002 ("ECT Act").

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1. Who we are (ECT Act section 43 disclosures)

Bud Share is operated by:

Item	Details
Full legal name of operator	[LEGAL ENTITY NAME]
Legal status	[LEGAL STATUS, e.g. private company / sole proprietor]
Registration number	[COMPANY REGISTRATION NUMBER]
Trading name / brand	Bud Share – craft growers network, By Whoomph
Physical address (for service of legal documents)	[PHYSICAL ADDRESS]
Postal address	[POSTAL ADDRESS]
Telephone	[CONTACT TELEPHONE NUMBER]
Email	[CONTACT EMAIL]
Website	https://budshare.onrender.com (or such other address as we notify)
Directors / office bearers	[NAMES OF DIRECTORS OR OFFICE BEARERS]
Self-regulatory or professional body (if any)	[SELF-REGULATORY BODY, or "None"]
Information Officer (POPIA)	[INFORMATION OFFICER NAME], [INFORMATION OFFICER EMAIL]

Price and payment: Bud Share is free to use. We charge no fees, and no money or other payment may change hands on or through Bud Share (see section 5). Because no goods or services are sold to you, the ECT Act's provisions on payment systems, delivery and the cooling-off right in section 44 do not apply. Our Privacy Policy (section 20) explains how we handle your personal information.

"**We**", "**us**" and "**our**" mean the operator named above. "**You**" and "**member**" mean anyone who opens Bud Share or creates an account. "**Bud Share**" or the "**Platform**" means the Bud Share web app, installable app (PWA), and related pages, invite links and services.

2. Private test, invite-only service

2.1 Bud Share is currently a **private test environment**. Access is restricted by an access code and/or a personal invite link from an existing member.

2.2 Features may change, be interrupted or be removed, and data may occasionally be reset during testing. We will try to give notice of resets but cannot guarantee it.

2.3 Do not share the site access code publicly. You may share your personal invite link with people you reasonably believe meet the eligibility rules in section 3.

3. Who may join – eligibility

3.1 **18+ only.** You must be at least 18 years old and old enough to lawfully possess and use cannabis in your jurisdiction. We ask for your date of birth at sign-up and will refuse or remove anyone under 18.

3.2 **Growers only.** Bud Share is a grower-to-grower network. You must grow the cannabis you list yourself. To propose or take part in swaps you must have at least one **active strain listing** of flower you grew. Members without an active listing can browse, but swapping is locked.

3.3 **Legality where you are.** You may only use Bud Share where growing, possessing and swapping cannabis on a no-money basis is lawful for you. See section 6.

3.4 **One account per person.** Accounts are personal and non-transferable. You may not create an account for someone else or use another member's account.

3.5 **Accurate information.** The details you give us (name, date of birth, country, area, town, email) must be true and kept up to date.

3.6 By ticking the sign-up boxes you confirm that you meet these requirements, that you have read and accept these Terms and our Privacy Policy, and that you understand and agree to the swap-at-your-own-risk notice.

4. What Bud Share is – and is not

4.1 Bud Share is a **platform only**. It lets members: - create a profile; - list strains they grow, with photos of the plant in flower and of the dried flower, and optional extra photos and a COA; - post to a community feed, and like and comment on posts; - browse and filter listings and posts by country, area, town, strain type, grow method, organic and lab-tested; - propose, counter and accept swaps; - chat privately with swap partners (one conversation per pair of members, covering all their swaps); - share courier and tracking details; - confirm receipt, rate, and report other members; - invite friends and share links.

4.2 **Bud Share is not a party to any swap.** We do not grow, buy, sell, supply, possess, store, handle, inspect, test, package, transport, courier or deliver cannabis or anything else. Any swap is solely between the members involved.

4.3 We do not verify members' identity, age, location, growing activity, the content or quality of any flower, any COA, or any courier or tracking detail. Ratings, badges and profile information are member-generated (see sections 8 and 9).

4.4 We do not act as an agent, broker, escrow or courier for anyone, and we give no legal, medical or agricultural advice.

5. Free swaps only – strict ban on sales and money

5.1 **Bud Share is for free, non-commercial swaps between growers.** A swap means exchanging some of your own home-grown flower for some of another member's home-grown flower. Amounts are freely negotiable between members (for example 5 g for 7 g).

5.2 The following are **strictly prohibited**, on and off the Platform where they arise from contact made through Bud Share: - selling or buying cannabis, or offering, requesting or accepting any money, payment, cryptocurrency, voucher, credit, gift card, "donation", "courier contribution" or other value in return for cannabis; - using Bud Share to advertise or promote any commercial cannabis business, dispensary, club, delivery service or product for sale; - swapping cannabis for anything other than another member's home-grown flower.

5.3 Each member pays their own courier costs directly to their chosen courier. Splitting courier costs between members, or reimbursing them, counts as payment and is not allowed.

5.4 **Breach of this section leads to removal.** Members found selling or asking for money will have their account suspended or terminated, their listings removed and, where appropriate, information passed to the authorities (see section 13).

6. Swap at your own risk – laws differ worldwide

6.1 **Swap at your own risk. Cannabis laws differ by country and region – only swap where it is legal for you. Bud Share does not allow sales.**

6.2 Bud Share is open to members in many countries. **You are solely responsible** for finding out about, and complying with, all laws that apply to you, including laws on: - cultivation, possession and private use, and any quantity limits; - giving, exchanging or "dealing" in cannabis, including whether a no-money swap is lawful where you are; - sending cannabis by post or courier, including within your country, across regional borders and especially across national borders. Cross-border shipment of cannabis is illegal in most countries; - courier companies' own terms, many of which prohibit cannabis.

6.3 In South Africa, the Cannabis for Private Purposes Act, 2024 and related regulations govern private cultivation, possession and use by adults. Commercial dealing remains prohibited. **Nothing on Bud Share is legal advice.** The law may change, and its application to swaps and courier delivery may be uncertain. Take your own advice if you are unsure.

6.4 **Do not use Bud Share, list, swap or ship anything where doing so is unlawful for you or the other member.**

7. How swaps work and your responsibilities

7.1 **Proposing and agreeing.** A member proposes a swap by choosing one of their strains, one of the other member's strains and the grams on each side. The other member may accept, counter-offer or cancel. A swap is "agreed" when both members accept the same terms. Either member may cancel before agreement. After agreement, the swap cannot be cancelled through the app.

7.2 **An agreed swap is a private arrangement between the two members.** You agree to honour your agreed swaps in good faith and send what you agreed.

7.3 **Couriers and shipping – entirely your responsibility and risk.** - (a) Choosing a courier, booking it, paying for it, and packaging your parcel are **solely the responsibility and risk of the swapping members**. - (b) **Bud Share gives no courier recommendations and no packaging advice.** Any courier names suggested in the app's courier field are only a typing shortcut, not a recommendation or endorsement. - (c) **We make no representation that any courier accepts, carries or permits cannabis parcels.** Many couriers prohibit them. - (d) **You must comply with your chosen courier's terms and conditions** and any applicable postal, customs and transport laws. - (e) Each member shares the courier name and tracking number in the chat. You may apply one courier booking and tracking number to several agreed swaps with the same member. - (f) **Bud Share is not liable for any parcel that is lost, stolen, seized, intercepted, damaged, delayed, refused or returned, or for any breach of a courier's terms**, or for any consequences of these.

7.4 **Receipt.** When your parcel arrives, mark it "Received". "Not received" can only be used once the other member has shared tracking. It should only be used if the parcel genuinely never arrived after a reasonable time.

7.5 **Personal details.** Only share the personal details needed for the swap (for example a delivery address), and only in the private chat. Never send or request money or payment details.

7.6 **No guarantees.** We do not guarantee that any member will send anything, or that anything received will match its listing, photos, COA, weight, strain, quality or safety.

8. Ratings

8.1 After a swap, **only a member who has marked their parcel as received** can rate that swap. Each member can rate each swap once: - the **flower** they received (1–5 stars), which counts towards that strain's flower rating; and - the **member** who sent it (1–5 stars), which counts towards their member rating; - with an optional comment.

8.2 Ratings must be honest, based on your own genuine experience of that swap, and free of abuse, personal information, threats or anything prohibited by section 11.

8.3 Do not manipulate ratings, for example by making fake or collusive swaps, using multiple accounts, or offering anything in return for a rating.

8.4 Ratings are members' opinions, not ours. We may remove ratings that breach these Terms.

9. COAs and the "Lab tested" badge

9.1 Members may upload a Certificate of Analysis ("COA") with a listing. A listing with a COA shows a **"Lab tested" badge**.

9.2 **COAs and the "Lab tested" badge are supplied by members and are not checked, verified or endorsed by Bud Share.** We do not confirm that a COA is genuine, current, issued by an accredited laboratory, or relates to the flower actually sent. Treat them as the member's own claim.

9.3 You must only upload a COA that is genuine and relates to the strain and batch you are listing. Uploading a false or altered COA is a serious breach (see section 11).

10. Reports, strikes and removal

10.1 You can report a member from their profile or from the swap chat for: - **Non-delivery**; - **Selling / asking for money**; - **Under 18**; - **Fake photos / listing**; - **Harassment / abuse**; or - **Other**;

with an optional note. You can only report the same member for the same reason once. "Non-delivery" can only be reported on a swap that has been agreed with that member.

10.2 **Automatic removal after 3 non-delivery reports.** Each non-delivery report counts as a strike. **When a member reaches 3 non-delivery strikes, their account is automatically removed** and blocked, their listings are deactivated, and their open (not yet agreed) swaps are cancelled. This happens automatically and without prior notice, because non-delivery directly harms other members.

10.3 **Admin review.** All other reports go to our admin team for review. We may take any action we consider reasonable, including warning, restricting, suspending or removing the member, or removing content. We aim to act fairly and in proportion to what happened, but we are not obliged to investigate every report or to give reasons.

10.4 If you believe you were removed in error, contact us at [CONTACT EMAIL] within 30 days. We will review the matter. Our decision after review is final, without affecting any rights you have in law.

10.5 False, malicious or retaliatory reports are a breach of these Terms.

11. Prohibited conduct

You must not: - (a) sell, buy, or ask for or offer money or any payment (section 5); - (b) join or stay on Bud Share if you are under 18, or help any under-18 person to access cannabis or the Platform; - (c) list flower you did not grow yourself, or post fake, stolen, misleading or stock photos, false strain information, or a false or altered COA; - (d) list or send anything other than cannabis flower, including any other drug, edible, extract, seeds or clones offered for sale, or anything dangerous, contaminated or adulterated; - (e) use Bud Share to arrange anything unlawful where you or the other member are; - (f) harass, threaten, abuse, stalk, defame, discriminate against or intimidate anyone, or post hate speech, sexual content or content involving minors; - (g) post anyone else's personal information without their consent, or misuse personal information you receive through Bud Share (including addresses and tracking numbers) for anything other than the swap concerned; - (h) impersonate anyone, create multiple or fake accounts, or misrepresent your age, location or growing activity; - (i) manipulate ratings or reports, or make false reports; - (j) send spam, chain messages or unsolicited advertising, or misuse invite or share links; - (k) scrape, harvest or bulk-collect data, reverse engineer the Platform, probe or break its security or access gate, introduce malware, or overload or disrupt the service; - (l) share the private test access code publicly or let others use your account; - (m) infringe anyone's intellectual property or other rights.

12. Your content and the licence you give us

12.1 "**Your content**" includes your profile details and photo, strain listings and photos, COAs, posts, comments, likes, chat messages, courier details, ratings and reports.

12.2 **You keep ownership of your content.** You grant us a non-exclusive, worldwide, royalty-free licence, for as long as your content is on Bud Share and for a reasonable period afterwards for backups and records, to: - host, store, reproduce, resize, compress and display your content; and - distribute it to other members as the Platform's features intend;

for the purpose of operating, securing, improving and promoting Bud Share. You can sub-license this to our hosting and database providers.

12.3 We will not use your photos in public marketing outside the Platform without first asking you.

12.4 You confirm that you own or have the right to share your content, that it is accurate, and that it does not breach these Terms or anyone's rights.

12.5 We may remove or hide any content, at any time and without notice, if we reasonably believe it breaches these Terms or the law, or creates risk for members or for us. We do not pre-moderate content and are not responsible for content posted by members.

12.6 **Who sees what:** - your profile (name, photo, town, area, country, ratings, joined date, who invited you and how many friends you invited), listings and posts are visible to other logged-in members; - chat messages and courier details are visible only to you and the member you are chatting with (and to our admins when needed for safety, report review or legal reasons, as set out in the Privacy Policy).

13. Co-operation with authorities and complaints

We may keep and disclose information, including content and account details, if we reasonably believe it is required by law, a court order or a lawful request from authorities, or necessary to protect someone's safety, to investigate a serious breach (such as selling or under-18 use), or to protect our rights. See the Privacy Policy.

14. Invite links and social sharing

14.1 Each member gets a personal invite code and link. People who sign up through your link are recorded as "Invited by" you, and your profile shows how many friends you invited.

14.2 A valid invite link lets a new person reach the sign-up page without the site access code. The normal rules (18+, growers only, an active listing to swap, these Terms) still apply to them.

14.3 Share buttons let you share invite, profile and post links through your device's share sheet, X, Facebook, WhatsApp or by copying a link. When you use them you are sharing through those third-party services under their own terms and privacy policies. Only share with people you reasonably believe are eligible, and never in a way that promotes sales.

15. Accounts, security and leaving Bud Share

15.1 Keep your password confidential. You are responsible for activity on your account. Tell us at once at [CONTACT EMAIL] if you suspect unauthorised use.

15.2 You may stop using Bud Share at any time. To close your account and have your data deleted, email [CONTACT EMAIL] from your registered email address. See the Privacy Policy for what we keep and why.

15.3 **We may suspend or terminate your account, or restrict features, at any time** if: - you breach these Terms, especially sections 3, 5, 6 and 11; - we are required to by law; - your conduct creates risk for other members or for us; or - we suspend or discontinue Bud Share.

Where reasonable and lawful, we will tell you why.

15.4 On termination your right to use Bud Share ends. Sections that by their nature should continue survive termination, including sections 4, 6, 9, 12 (licence for backups and records), 13 and 16 to 21.

16. Disclaimers

16.1 **Bud Share is provided "as is" and "as available".** To the fullest extent the law allows, we make no warranties, express or implied, including about: - availability, accuracy, security or fitness for purpose; - the identity, age, conduct, honesty or legal status of any member; - the lawfulness of any swap where you are; - the quality, safety, potency, weight, strain or contents of any flower, listing, photo or COA.

16.2 Cannabis use carries health, legal and safety risks. You use, possess, grow, swap and ship cannabis **entirely at your own risk**. Do not drive or operate machinery under the influence.

16.3 Links and share features may take you to third-party sites, which we do not control and are not responsible for.

17. Limitation of liability

17.1 **To the fullest extent permitted by law, we (and our directors, employees, contractors and service providers) are not liable for any loss, damage, cost, claim, penalty or harm of any kind** (including direct, indirect, consequential or special loss, loss of property, criminal or administrative penalties, legal costs, personal injury, or loss of data) arising from or connected with: - (a) any swap, parcel, delivery or non-delivery, your choice of courier, or any courier's acts, omissions or terms; - (b) any flower or other item sent or received, including its quality, safety or legality; - (c) the conduct of any member or third party, online or offline; - (d) your breach of any law or of these Terms; - (e) any member content, rating, report, COA or badge; - (f) any seizure, arrest, prosecution or other action by any authority; - (g) any interruption, error, data loss, reset or security incident affecting the Platform, except to the extent caused by our gross negligence or wilful misconduct.

17.2 Because Bud Share is free, **our total liability to you for any claim is limited to R100 (one hundred rand)**, to the extent the law permits such a limit.

17.3 Nothing in these Terms excludes or limits liability that cannot lawfully be excluded or limited, including under the Consumer Protection Act, 2008 where it applies, or for gross negligence or wilful misconduct.

18. Indemnity

You indemnify and hold harmless us and our directors, employees, contractors and service providers against all claims, demands, losses, liabilities, fines, penalties, costs and expenses (including reasonable legal fees on an attorney-and-own-client scale) arising from: - your use of Bud Share; - your swaps, parcels and shipping; - your content; - your breach of these Terms; or - your breach of any law or of any third party's rights.

19. Changes

19.1 We may update these Terms from time to time, for example because of new features, legal advice or changes in law. We will: - post the updated Terms on Bud Share with a new effective date; and - for material changes, notify you in the app or by email at least 14 days before they take effect, unless a change is required sooner by law or for safety.

19.2 If you keep using Bud Share after changes take effect, you accept them. If you don't agree, stop using Bud Share and ask us to close your account.

20. Privacy

Our **Privacy Policy** explains how we collect, use, share and protect your personal information, and your rights under POPIA and similar laws. It forms part of these Terms.

21. General

21.1 **Governing law and courts.** These Terms are governed by the laws of the Republic of South Africa. You consent to the jurisdiction of the South African courts, including the Magistrates' Court having jurisdiction over us under section 45 of the Magistrates' Courts Act, 1944. This does not prevent us from approaching any court with jurisdiction. If you are a consumer outside South Africa, you keep any mandatory protections of your home country's law.

21.2 **Electronic communications.** You agree that we may communicate with you electronically (in the app or by email). Electronic notices, agreements and records satisfy any requirement for writing, in line with the ECT Act. Ticking the sign-up boxes is your electronic acceptance of these Terms.

21.3 **Legal notices to us** must be sent to [CONTACT EMAIL] and to our physical address at [PHYSICAL ADDRESS], which we choose as our *domicilium citandi et executandi*. Notices to you will be sent to the email address on your account.

21.4 **Entire agreement.** These Terms, the Privacy Policy, and any in-app rules or notices together are the whole agreement between you and us about Bud Share.

21.5 **Severability.** If any provision is found invalid or unenforceable, it is severed and the rest remains in force.

21.6 **No waiver.** Any relaxation or delay by us in enforcing these Terms is not a waiver of our rights.

21.7 **Assignment.** You may not transfer your rights under these Terms. We may transfer ours, for example to a successor operator of Bud Share, on notice to you.

21.8 **Disputes.** Please contact us first at [CONTACT EMAIL] so we can try to resolve any complaint informally. Complaints are not handled by the Information Regulator unless they are about personal information; for those, see the Privacy Policy.

Bud Share – craft growers network. By Whoomph. [LEGAL ENTITY NAME] · [COMPANY REGISTRATION NUMBER] · [PHYSICAL ADDRESS] · [CONTACT EMAIL]

Bud Share – Privacy Policy

DRAFT – for review before publication

Effective date: [EFFECTIVE DATE]
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Bud Share – craft growers network, *By Whoomph*.

This Privacy Policy explains how [LEGAL ENTITY NAME] ("**we**", "**us**") processes your personal information when you use Bud Share. It is written to comply with: - South Africa's **Protection of Personal Information Act, 2013 ("POPIA")**; and - where they apply to international members, data-protection laws such as the EU/UK **General Data Protection Regulation ("GDPR")**.

Please read it together with our Terms of Use.

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1. Responsible party and Information Officer

Item	Details
Responsible party ("controller")	[LEGAL ENTITY NAME], registration number [COMPANY REGISTRATION NUMBER]
Address	[PHYSICAL ADDRESS]
Contact email	[CONTACT EMAIL]
Information Officer	[INFORMATION OFFICER NAME]
Information Officer email	[INFORMATION OFFICER EMAIL]
Information Regulator registration	[INFORMATION OFFICER REGISTRATION REFERENCE, once registered]

For all privacy questions and requests, contact the Information Officer.

2. The short version

- We collect what we need to run a private, 18+, growers-only swap network: your account details, what you list and post, your chats with swap partners, ratings and reports, and basic technical data.
- Other logged-in members can see your profile, listings and posts. Only you and your chat partner can see your chats.
- We **do not sell** your information, we **do not use it for advertising**, and we **do not send direct marketing**.
- We host with **Render** (Frankfurt, Germany, EU) and store data with **Supabase** (Zurich, Switzerland).
- **Age:** we confirm you are 18+ from the date of birth you give us and your 18+ declaration.
- You can ask to see, correct or delete your information, and you can complain to the Information Regulator.

3. Personal information we collect

3.1 Information you give us

Account details - display name and email address; - password, which we store only as a one-way **bcrypt hash** and never in readable form; - date of birth (to confirm you are 18+); - country, area/region and town/city.

Profile photo – optional.

Strain listings - strain name, type (Indica / Sativa / hybrid / 50-50), grow method (Indoor / Outdoor / Greenhouse), organic flag and description; - photos of the plant in flower, of the dried flower, and any extra photos; - an optional **Certificate of Analysis (COA)**, which may itself contain names or other details.

Feed activity – posts (text and photos), comments and likes.

Swaps - swap proposals, counter-offers, acceptances and cancellations; - the strains and grams involved; - receipt confirmations ("Received" / "Not received").

Chat messages with your swap partners, including anything you choose to write, such as a delivery or collection address.

Courier details you share in chat (courier name, tracking number(s), notes), including the history of any updates.

Ratings you give and receive (flower and member stars, comments).

Reports you make or that are made about you (reason, note, the swap concerned, and the outcome).

Consents – your acceptance of the Terms and of the swap-at-your-own-risk notice, with the date.

Messages to us – for example support or privacy requests.

3.2 Age confirmation

Bud Share is for adults only. We confirm age by: - your **date of birth**, which is required at sign-up. Sign-up is refused if it shows you are under 18; and - your **declaration**, by ticking a box, that you are 18 or older.

Members who joined before date of birth was required are asked for it at their next login. If the date entered is under 18, the account is closed.

We do not ask for ID documents or photos to confirm your age.

3.3 Information collected automatically

Cookies. We use only the cookies needed to run the service:

Cookie	Purpose	Duration
`bs` (with signature)	Keeps you logged in (session)	Up to 30 days
`bsgate`	Remembers that you passed the private-test access gate or used a valid invite link	Up to 1 year

We do not use advertising or third-party analytics cookies.

Local storage on your device - the invite code you arrived with, until sign-up completes; - cached app files so the installable app (PWA) loads quickly.

Technical logs. Our hosting provider and our server keep standard logs, such as: - IP address; - date and time; - page or API path requested; - browser/device type; and - errors.

We use them for security, abuse prevention and fixing problems.

Read status – when you last read each chat, so we can show unread messages.

3.4 Information from other members

- Ratings, reports and chat messages other members write about or to you.
- **Invite referrals:** if you joined through someone's invite link, we record who invited you, and your profile shows "Invited by" that member. Members also see how many people they invited.

3.5 Cannabis-related information

Your use of Bud Share shows that you grow and use cannabis. Reports may contain allegations of unlawful conduct (for example selling). Under POPIA, information about alleged criminal behaviour is special personal information. We process it only where: - it is necessary to establish, exercise or defend a right or obligation in law (POPIA s27(1)(b)); or - you have consented; and - in all cases, only for safety, report handling and legal compliance.

Please do not include health information or more personal details than needed in posts or chats.

4. Why we use your information and our lawful bases

Purpose	Information used	Lawful basis (POPIA s11 / GDPR art. 6)
Creating and running your account, logging you in	Account details, cookies	Performance of our agreement with you (the Terms)
Checking you are 18+	Date of birth, 18+ declaration	Agreement; legal obligation and legitimate interest in protecting minors
Showing your profile, listings and posts to members; search and location filters	Profile, listings, posts, location	Agreement
Swaps, chat, courier details, receipt confirmations	Swap and chat data, courier details	Agreement
Ratings and the "Lab tested" badge	Ratings, COAs	Agreement; legitimate interest in member trust
Reports, strikes, automatic removal after 3 non-delivery reports, admin review	Reports, swap and chat data, account details	Legitimate interest in member safety and enforcing the Terms; legal obligation where relevant
Invites and referral records	Invite code, inviter link	Agreement; legitimate interest
Security, abuse and fraud prevention, access gate, logs	Technical data, cookies	Legitimate interest; legal obligation
Responding to you, legal requests, defending claims	As needed	Legal obligation; legitimate interest
Improving the service (aggregated, non-identifying use)	Technical data, usage counts	Legitimate interest

Where we rely on consent, you can withdraw it at any time (section 10). Withdrawal doesn't affect processing already done. It may mean you cannot use some features.

Automated decisions. - Sign-up is refused automatically if your date of birth shows you are under 18. - Reaching 3 non-delivery reports removes an account automatically. You can ask for a human review (Terms section 10.4), and you may object under POPIA s71.

5. Who can see or receive your information

Other members (logged in) - your display name, profile photo, town, area and country, member rating and count, joined date, "Invited by" and invite count; - your strain listings with photos, COA and badges; - your posts, comments and likes; - ratings shown on strains.

Your chat partner only – your chat messages, courier details, receipt confirmations and ratings within that conversation.

Bud Share admins – where needed to review reports, abuse or legal matters, including chats connected with a report.

Service providers (operators) who process data on our instructions under written terms:

Provider	Service	Location
Render (Render Services, Inc.)	Application hosting, server logs	Frankfurt, Germany (EU)
Supabase (Supabase, Inc.)	Postgres database, which also holds uploaded photos and COAs	Zurich, Switzerland (AWS eu-central-2)
GitHub (GitHub, Inc.)	Source-code hosting only – no member data	[CONFIRM: no member data stored]

Third parties you choose to use - Couriers – you deal with them directly. - Social networks and apps you share links to (X, Facebook, WhatsApp, your device's share sheet), under their own policies.

Authorities – where required by law or a valid court order, or where necessary to protect someone's safety or to investigate serious breaches (Terms section 13).

A successor operator – if Bud Share is transferred, under equivalent protections and with notice to you.

We **never sell** personal information, and we do not share it for advertising.

6. Cross-border transfers (POPIA section 72)

Our providers store and process data **outside South Africa**, in Germany (EU) and Switzerland. We transfer personal information there only because: - both are subject to data-protection law that provides an adequate level of protection, substantially similar to POPIA (the GDPR in the EU; the revised Federal Act on Data Protection in Switzerland); and - our providers are bound by data-processing terms; and - the transfer is necessary to perform our agreement with you (s72(1)(a) and (c)).

Some providers may also access data from other countries, such as the USA, for support or security. They do so under their own contractual safeguards, such as Standard Contractual Clauses.

International members' information is processed in the same locations.

7. How long we keep information

Information	Retention
Account, profile, listings, posts	While your account is active. Deleted within 30 days after you ask us to close your account, except as below
Chat messages, swaps, courier details	While either member's account is active, because they also belong to the other member's history. On deletion we remove or anonymise your name from them where practical
Ratings	Kept as part of strain/member averages; your identity is removed when your account is deleted
Reports and removal records (including banned members' email)	Up to [RETENTION PERIOD, e.g. 3 years] after the last action, to prevent banned members re-joining and to defend claims
Date of birth and 18+ declaration	While your account is active
Server and security logs	Generally up to [LOG RETENTION, e.g. 30–90 days], depending on provider settings
Backups	Overwritten on the provider's backup cycle

We may keep information longer where the law requires it, or for an ongoing dispute or investigation (POPIA s14).

8. Security

We take reasonable technical and organisational measures (POPIA s19), including: - HTTPS encryption in transit; - passwords stored only as bcrypt hashes; - signed, HTTP-only session and access cookies; - a private access gate during testing; - `noindex` settings so search engines don't list the site; - restricted admin access; - encrypted (SSL) database connections; and - no secrets in public code.

No system is perfectly secure. If a security compromise is likely to affect you, we will notify you and the Information Regulator as POPIA s22 requires.

Please: - protect your password; - don't share the site access code; - think carefully before posting an address or other identifying details in chat.

9. Children

Bud Share is strictly for **adults aged 18 and over**. We do not knowingly collect information from anyone under 18. If we learn that an under-18 person has joined, we will delete their account and information, except for a minimal record to prevent re-registration. Report suspected under-18 members using **Report → Under 18**, or email [CONTACT EMAIL].

10. Your rights

Under POPIA (and the GDPR where it applies to you) you have the right to: - **Access** – ask whether we hold your information and receive a copy (POPIA s23). - **Correction and deletion** – ask us to correct, update or delete inaccurate, out-of-date or unlawfully held information (POPIA s24). You can edit your profile and location in the app at any time. - **Object** – object to processing based on legitimate interests (POPIA s11(3)). - **Withdraw consent** where we rely on it. - **Not be subject to solely automated decisions** with legal or similarly significant effects without the chance to make representations (POPIA s71). - **For GDPR-covered**

members, additionally – data portability, restriction of processing, and the right to complain to your local data-protection authority.

To exercise your rights: - email [INFORMATION OFFICER EMAIL] from your registered email address; - we may ask you to verify your identity; - we will respond within a reasonable time, and generally within 30 days; - requests are free, except where the law allows a prescribed fee for access to records.

Complaints – Information Regulator (South Africa)

If you are unhappy with how we handle your information, please contact us first. You also have the right to complain to the Information Regulator:

- **Physical address:** Woodmead North Office Park, 54 Maxwell Drive, Woodmead, Johannesburg, 2191
- **Postal address:** P.O. Box 31533, Braamfontein, Johannesburg, 2017
- **General enquiries:** enquiries@inforegulator.org.za
- **POPIA complaints (Form 5):** POPIAComplaints@inforegulator.org.za, or online at https://eservices.inforegulator.org.za
- **Telephone:** 010 023 5200 · Toll-free: 0800 017 160
- **Website:** https://inforegulator.org.za

(Contact details checked October 2026 – confirm before publication.)

11. Direct marketing

We do not send direct marketing. We may send you service messages about your account, swaps, safety or changes to our Terms and this Policy.

12. Changes to this Policy

We may update this Policy, for example when we add new features. We will: - post the new version with an updated effective date; and - for material changes, tell you in the app or by email before they take effect.

13. Contact

[INFORMATION OFFICER NAME], Information Officer [LEGAL ENTITY NAME] · [PHYSICAL ADDRESS] [INFORMATION OFFICER EMAIL] · [CONTACT EMAIL]

Bud Share – craft growers network. By Whoomph.